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Case Number: 24PSCV03491 Hearing Date: July 20, 2026 Dept: 6

CASE NAME: Veronica

Isabel Soderstrom, et al. v. Pacific Tennis Courts Inc, et al.

Claimant Carson Ingemar Soderstrom's

Petition for Approval of Compromise of Claim or

Action or Disposition of Proceeds of Judgment for Minor or Person with a
Disability

TENTATIVE RULING

The Court

DENIES Claimant Carson Ingemar Soderstrom's Petition for Approval of Compromise
of Claim or Action or Disposition of Proceeds of Judgment for Minor or Person
with a Disability without prejudice.

Petitioner is ordered to provide notice of the Court's
ruling and file proof of service of same within five days of the Court's order.

BACKGROUND

This is an auto accident case. On October 16, 2024, plaintiffs Veronica
Isabel Soderstrom (Petitioner), Carson Ingemar Soderstrom (Claimant), by and
through his guardian ad litem, Veronica Isabel Soderstrom, filed this action
against defendants Pacific Tennis Courts Inc, Philip Leonard Jr Carter (collectively,
Defendants) and Does 1 to 50, alleging causes of action for general negligence
and motor vehicle.

On June 25, 2026, Petitioner filed a petition for

approval of compromise of claim or action or disposition of proceeds of judgment for minor or person with disability on behalf of Claimant.

LEGAL STANDARD

Court approval is required for all settlements of a minor's claim or that of a person lacking the capacity to make decisions. (Prob. Code, §§ 2504, 3500, 3600 et seq.; Code Civ. Proc., § 372; see *Pearson v. Superior Court* (2012) 202 Cal.App.4th 1333, 1337.) "[T]he protective role the court generally assumes in cases involving minors, [is] a role to assure that whatever is done is in the minor's best interests [I]ts primary concern is whether the compromise is sufficient to provide for the minor's injuries, care and treatment." (*Goldberg v. Superior Court* (1994) 23 Cal.App.4th 1378, 1382.)

A petition for court approval of a compromise under Code of Civil Procedure section 372 must comply with California Rules of Court Rules 7.950, 7.951, and 7.952. The petition must be verified by the petitioner and contain a full disclosure of all information that has "any bearing upon the reasonableness" of the compromise or the covenant. (Cal. Rules of Court, rule 7.950.) The person compromising the claim on behalf of the person who lacks capacity, and the represented person, must attend the hearing on compromise of the claim unless the court for good cause dispenses with their personal appearance. (Cal. Rules of Court, rule 7.952, subd. (a).) An order for deposit of funds of a minor or person lacking decision-making capacity and a petition for the withdrawal of such funds must comply with California Rules of Court Rules 7.953 and 7.954. (Cal. Rules of Court, rule 3.1384; see also *Super. Ct. L.A. County, Local Rules*, rules 4.115-4.118.)

DISCUSSION

Form MC-350 (Rev. January 1, 2021)

Petitioner verified the petition on a fully completed mandatory Judicial Council Form MC-350, using the current January 1, 2021 revision. (Cal. Rules of Court, rule 7.950.)

Settlement

Claimant has agreed

to settle this action against Defendants in exchange for \$50,000.00, \$13,339.12 of which will go to Claimant. If approved, \$16,500.00 will be paid in attorney fees, \$1,242.69 will be paid for reimbursement of litigation costs advanced by Claimant's attorneys, and \$18,917.69 will be paid for medical expenses, leaving a balance of \$13,339.12 for Claimant, to be deposited into insured accounts in one or more financial institutions in this state, subject to withdrawal only on authorization of the Court.

The Court has reviewed the proposed settlement and finds the petition does not contain a full disclosure of all information that has any bearing upon the reasonableness of the settlement amount to Claimant.

Attorney Fees

Petitioner disclosed the retained attorney's information per Rule 7.951 of the California Rules of Court. There are agreements for services provided in connection with the underlying claim, copies of which Petitioner submitted per Rule 7.951, subdivision (6), of the California Rules of Court. (Ellis Decl., Ex. A; Berman Decl., Ex. A; Cal. Rules of Court, rule 7.951.)

Petitioner's counsel seeks to recover \$16,500.00 in attorney fees. (Ellis Decl., ¶ 6; Berman Decl., ¶ 5.) Petitioner's counsel provided a declaration addressing the reasonableness of the fee request per Rule 7.995, subdivision (c), of the California Rules of Court, accounting for the factors specified in Rule 7.955, subdivision (b). (See generally, Ellis Decl.; Berman Decl.; see Cal. Rules of Court, rule 7.955, subds. (b)-(c).) Rule 7.955, subdivision (b), provides as follows:

(b) Factors the court may consider in determining a reasonable attorney's fee. In determining a reasonable attorney's fee, the court may consider the following nonexclusive factors:

(1) The fact that a minor or person with a disability is involved and the circumstances of that minor or person with a disability.

(2) The amount of the fee in proportion to the value of the services performed.

(3) The novelty and difficulty of the questions involved and the skill required to perform the legal services properly.

(4) The amount involved and the results obtained.

(5) The time limitations or constraints imposed by the representative of the minor or person with a disability or by the circumstances.

(6) The nature and length of the professional relationship between the attorney and the representative of the minor or person with a disability.

(7) The experience, reputation, and ability of the attorney or attorneys performing the legal services.

(8) The time and labor required.

(9) The informed consent of the representative of the minor or person with a disability to the fee.

(10) The relative sophistication of the attorney and the representative of the minor or person with a disability.

(11) The likelihood, if apparent to the representative of the minor or person with a disability when the representation agreement was made, that the attorney's acceptance of the particular employment would preclude other employment.

(12) Whether the fee is fixed, hourly, or contingent.

(13) If the fee is contingent:

(A) The risk of loss borne by the attorney;

(B) The amount of costs advanced
by the attorney; and

(C) The delay in payment of fees
and reimbursement of costs paid by the attorney.

(14) Statutory requirements for
representation agreements applicable to particular cases or claims.

(Cal. Rules of Court, rule 7.955, subd. (b).)
The Court addresses these factors below.

Amount of Fee in Proportion to
Value of Services Performed

Petitioner's counsel contends a
33% contingency fee is fair and reasonable under the circumstances, as this
matter has been litigated since January 2023 and has required the combined
efforts of three separate law firms. Petitioner's counsel indicates the work
performed, including discovery, mediation, and settlement. (Ellis Decl., ¶ 7; Berman Decl., ¶ 9.)

Novelty and Difficulty

Petitioner's counsel's
declarations do not address this factor. (See generally, Ellis Decl.; Berman
Decl.)

Amount Involved and Results
Obtained

Petitioner's counsel indicates a
gross settlement of \$50,000.00. (Berman Decl., ¶ 5.)

Nature and Length of Professional
Relationship

Petitioner's counsel indicates
the professional relationship beginning on January 3, 2023. (Ellis Decl., ¶ 4;
Berman Decl., ¶ 4.)

Experience, Reputation, and
Ability of Counsel

Petitioner's counsel indicates
having over ten years of experience litigating personal injury cases in
California. (Ellis Decl., ¶ 2; Berman Decl., ¶ 2.)

Time and Labor Required

Petitioner's counsel indicates
litigating this matter for more than two and a half years and having engaged in
standard matters such as discovery, mediation, and settlement negotiations. (Ellis Decl., ¶ 7; Berman Decl., ¶¶ 7, 9.)

Acceptance of Case Precluding
Other Employment

Petitioner's counsel's
declarations do not address this factor. (See generally, Ellis Decl.; Berman
Decl.)

Contingency Fee

Petitioner's counsel indicates a
contingency fee of 33%. (Ellis Decl., ¶ 7; Berman Decl., ¶ 7.)

"California

Rules of Court, rule 7.955 requires a trial court, in determining
reasonable attorney fees, to balance an attorney's interest in fair
compensation with the protection of the interests of a minor client. Thus, a
trial court 'must give
consideration to the terms of any representation agreement made between
the attorney and the representative of the minor or person with a disability
and must evaluate
the agreement based on the facts and circumstances existing at the time the
agreement was made.' [Citation.]" (Schulz v. Jeppesen Sanderson, Inc. (2018)
27 Cal.App.5th 1167, 1176-1177, italics in original.)

The Court finds that while
Petitioner's counsel has otherwise adequately demonstrated the reasonableness
of a fee award, it is unclear why Petitioner's counsel requested \$12,500.00,

i.e., 25%, in the prior petition for minor's compromise but now they seek \$16,500.00, i.e., 33%. (See Order Re: Court Ruling (6/1/26).) Petitioner's counsel needs to clarify this discrepancy.

Medical Bills

Claimant has incurred \$87,644.88 in medical expenses, but lien claimants have agreed to reduce their claims to \$18,917.69. (Petition, ¶ 12, subd. (a).)

Costs

Petitioner's counsel seeks to recover \$1,242.69 in costs advanced. (Petition, ¶ 13, subd. (b).)

Amount to Be Paid to Claimant

The Petition reflects conflicting amounts regarding Claimant's share of the settlement proceeds. Paragraphs 15 and 16 indicate \$13,339.12 while paragraph 18 indicates, \$15,995.37. (Petition, ¶¶ 15-16, 18.)

Disposition of Balance of Proceeds

Petitioner requests that the net proceeds be deposited into insured accounts in one or more financial institutions in this state, specifically SchoolsFirst Federal Credit Union, subject to withdrawal only on authorization of the Court. (Petition, ¶ 18, subd. (b)(2), Attach. 18a(3)(a).)

Prognosis

Claimant has completely recovered from the underlying injuries. (Petition, ¶ 8, subd. (a).)

Court Appearance

California Rule of Court 7.952, subdivision (a), requires attendance by the petitioner and claimant unless the

court for good cause dispenses with their personal appearance. (Cal. Rules of Court, rule 7.952, subd. (a).) The Court finds that the appearance of Claimant is not required due to Claimant's status as a minor. Petitioner must still appear for the hearing.

Order Approving Compromise of
Claim or Action or Disposition of Proceeds of Judgment for Minor or Person with
a Disability (MC-351) & Order to Deposit Funds in Blocked Account (MC-355)

Petitioner filed a proposed order
for approving the Petition (Form MC-351). However, Petitioner did not provide
Claimant's name or otherwise complete the proposed order. (MC-351, ¶¶ 3, 5-13.)
Petitioner also failed to submit a proposed order to deposit funds in a blocked
account (Form MC-355).

Other Issues

Petitioner did not provide
Claimant's name in paragraph 2 of the Petition. (Petition, ¶ 2.) The Petition
also contains discrepancies and incomplete information regarding the settlement
amounts paid to Petitioner. Paragraph 11 says the total settlement amount
offered is \$75,000.00, but paragraph 17, subdivision (f), says Petitioner will
receive \$30,000.00. Combined with Claimant's \$50,000.00, the total settlement
amount would add up to \$80,000.00. (See Petition, ¶ 17, subd. (f).) Petitioner
also failed to complete paragraph 11, subdivision (b)(5), and provide
Attachment 11b(6). (See Petition, ¶ 11, subds. (b)(5)-(b)(6).) Petitioner needs
to correct these issues.

Based on the foregoing, the Court DENIES the Petition
without prejudice.

CONCLUSION

The Court
DENIES Claimant Carson Ingemar Soderstrom's Petition for Approval of Compromise
of Claim or Action or Disposition of Proceeds of Judgment for Minor or Person
with a Disability without prejudice.

Petitioner is ordered to provide notice of the Court's
ruling and file proof of service of same within five days of the Court's order.